

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO.

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virender Modi, No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No. **126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No. **134**/Vivek Purohit, No. **142**/Bharat Das Vishnav and No. **177**/Rajiv Kumar Rana are in custody produced through VC.

Accused Vivek Harivasi (**115**), Vijay Shukla (**149**), Raj Kumar Modi (**176**), and Surender Singh (**140**) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Accused Leena Harivassi (**146**), Vimal Sanwal Sharma (**147**), Ajit Singh (**150**), Ramlal Arya (**158**), Hemant Kumar (**159**), Parveen Kumar (**161**), Ravi Kr. Tak (**166**), Raj Kumar Bohra (**171**), Damyanti Bhandari (**179**), Dishan **182** to **186** in person being on bail.

Accused Bharat Kumar Mardia (**No.154**) not present but represented by Sh. Peeyush Jain, Advocate.

Accused Akshat Singh (**No. 136**) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (**No. 127**) in person represented by Ms. Manisha Singh, Advocate.

Accused Shiv Raj Sharma (**No. 160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Hemant Kumar Jain (**No. 159**) on bail represented by Ms. Sunita Saini, Advocate.

AR Kanak Krishi of accused Company (**No. 106**) not present but represented by Sh. Nitish Bhardwaj, Advocate.

AR Devender Kumar of accused Company (**No. 112**) not present but represented by Sh. Anubhav Almadi, Advocate.

Accused Jainam Rathore (**No. 130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (**No. 132**) and Neha Ghemawat Modi (**No. 124**).

Sh. Neeraj Dev Gaur, Advocate along-with accused Raj Kumar Bohra (**No. 171**).

Sh. Neeraj Dev Gaur, Advocate for accused Megha Chauhan (No. **163**).

Accused nos. **144,145,148,151** on bail but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Ms. Manisha Singh, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

Accused Nos. **71** to **78** , companies, represented through accused Sidharth Chauhan (**135**) on interim bail granted by Hon'ble High Court.

Accused No. **79** , company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, represented through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, represented through accused Jainam Rathod (No.130).

Accused Nos. **86, 87 and 88** , companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail not present Shri Bhim Sing Motsara Advocate.

Accused No. **89**, company, represented through accused Raj Kumar Bohra (**171**) on bail in person.

Accused Nos. **90 to 93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94 to 97** , companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99 and 100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. **101**, company, represented through Shri Abhishek, AR, in person

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR , in person

Accused No. **104**, company, represented through Shri Vicky, AR , in person

Accused No. **105**, company, represented through Shri Anup AR , in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR , in person

Accused No. **107**, company, represented through Shri Fateh Singh, AR , in person

Accused No. **108**, company, represented through Shri Jinsan, AR , in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR , in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR , in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR , in person

Accused Nos. **112**, company, represented through Shri Devender, AR, in person.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Badmer Rajasthan Jail.

Accused nos. **114,120, 123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Badmer Jail.

Accused Nitin Rathore (**116**) in person.

Accused No. **141** Aditya Sarda on bail with Shri Sandeep Aneja, Advocate.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (119), Sudhir Punia (143), as proclaimed persons.

None for the accused Nos. **83**.

Accused (No. **187**) Mahesh Kumar Tak absent. His anticipatory bail is pending.

*Proceedings qua accused **Mahender Kumar Tak (155)** and **Vijay Kumar Jindal (175)** abetted vide order dated 25.03.2022.*

Shri Manul Mittra Advocate for accused Bharat Modi (126), Vaibhav Lodha (120), Ishwar Singh (131), Rohit Modi (123), Bharat Das Vaishnav (142).

Shri Karamveer Advocate for accused Abhey K. Shah (127), accused no. 84, Icchhita Dundarwal (180) and Neha Kataria (181).

Accused Priyanka Modi (117) on bail not present represented by Shri Manul Mittra Advocate.

Shri Arun Sharma Advocate for accused Nazima Jhan(152).

Accused Paras Boli in custody not produced represented by Shri Nitin Saini Advocate.

Accused-**172** Saurabh Tak, **A-170** Sudhir Mehta, **A-165** Shyam Bihari Gupta, **A-153** Shabbir Khan, **A-128** Manish Chaudhary, **A-129** Deepak Shrimali, **A-127** Abhay K. Shah, and **A-118** Jitender Vyas **on bail**.

For Awaiting Death Report

Death report of accused No.122 (Virendere Modi) has not been filed. Now death report of accused No.122 (Virender Modi) be called for **17.11.2023** through SHO concerned.

(Accused Marked their presence)

Accused No. 115 Vivek Harivyasi, No. 116 Nitin Rathore, No.118 Jitender Vyas, No. 121 Paras Bolia, No. 127 Abhay K. Shah, No. 128 Manish Chaudhary, No. 129 Deepak Shrimali, No. 130 Jainam Rathod, No. 136 Akshat Singh, No. 138 Gurbir Singh Sandhu, accused No. 139 Naveen Kumar, accused No. 140 Surender Singh, No. 141 Aditya Sarda, No. 147 Vimal Sanwermal Sharma, accused No. 149 Vijay Shukla, No. 150 Ajit Singh Rathore, No. 153 Shabbir Khan, No. 158 Ramlal Arya, No. 159 Hemant Kumar Jain, No. 161 Praveen Kumar, No. 165 Shyam Bihari Gupta, , No.170 Sudhir Mehta, No. 171 Raj Kumar Bohra, No. 172 Saurabh Tak, No. 173, Peeyush Aggarwal, No. 174 Paramvir Singh Sangwan, No. 176 Raj Kumar Modi, No. 178 Mahesh Dutt Sharma, No. 179 Damyanti Bhandari, No. 182 Nimesh Kumar Ramsh Chandra Soni, No. 183 Rituraj Singh, No. 184 Dushyant Singh Rathor, No. 185 Shashank Shekhar Singh Rathore, No. 186 Jitesh Kumar Parmar.

(Application for marking presence of accused No.181 Neha Kataria)

An application for marking presence of accused No.181 Ms. Neha Kataria through her counsel and exempting the accused from personal appearance as already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 181 Ms. Neha Kataria is hereby marked.

(Application for marking presence of accused No.180 Ichchhita Dungarwal)

An application for marking presence of accused No.180 Ichchhita Dungarwal through her counsel and exempting the accused from personal appearance as already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 180 Ichchhita Dungarwal is hereby marked.

(Application for marking presence of accused No.153 Shabbir Khan and accused No. 152 Nazima Khan)

Reply to the applications seeking exemption from personal appearance on behalf of accused No.152 Nazima Khan and accused No. 153 Shabbir Khan not filed To come up on **17.11.2023** for filing reply, if any, and consideration on aforesaid application.

(Application for seeking exemption)

Separate applications seeking exemption from personal appearance on behalf of accused No.117 (Priyanka Modi), accused no. 152 (Nazima Khan), accused No. 166 (Ravi Tak) and accused No. 162 (Naveen Chaudhary), accused no. 86, accused no. 87 & Accused no. 88 have been filed. Heard. In view of the grounds mentioned in the application, the same are allowed and the accused named above are exempted from personal appearance for today only.

(Proceedings adjourned before High Court qua accused No. 135)

As far as accused Siddharth Chauhan (**135**) is concerned, counsel appearing on behalf of accused has placed on record copy of orders dated 18.05.2023, passed by Hon'ble High Court in CRM-M-27904-2022 and order dated has prayed that PO proceeding may be adjourned qua accused Siddharth Chauhan (**135**). Learned Prosecutor for SFIO has made a note on the margin of order sheet that 'Interim order of P.O. proceedings adjournment in force.' Heard. The PO proceedings qua accused Siddhartha Chauhan (**135**) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **17.11.2023** for awaiting further orders of Hon'ble High Court.

(Application under Section 306 of Cr.P.C. on behalf of accused No. 160 Shivraj Sharma)

Reply to the application under Section 306 of the Code of Criminal Procedure, 1973, for the tender of pardon to applicant/accused No. 160/Shivraj Sharma and allowing him to make a full and true disclosure of the whole of circumstances within his knowledge has not been filed. On the request of learned Prosecutor for SFIO-Department, matter is adjourned to **17.11.2023**, for filing reply and consideration on aforesaid application.

(Production warrants of accused)

Accused Rajiv Kumar Rana (No. **177**) has not been produced. Now, production warrant of accused Rajiv Kumar Rana (177) be issued for **17.11.2023** through video conferencing.

Accused namely Mukesh Modi (**113**) not produced by the Jail Authority by the District Jail Badmer Rajasthan. Let, fresh production warrant of accused Mukesh Modi (113) be issued to District Jail Badmer, Rajasthan for producing through video conferencing on **17.11.2023**.

Two separate applications for issuance of production warrants of accused Paras Bolia (**121**) accused Rohit Modi (**123**), Bharat Modi (**126**), Viabhav Lodha (**120**), Bharat Vaishnav (**142**) and Ishwar Singh Sindal (**131**) have been moved. Heard. Allowed. Accused namely Rahul Virendra Modi (**114**), Vaibhav Lodha (**120**), Rohit Modi (**123**), Rajeshwar Singh (**125**), Bharat Modi (**126**), Ishwar Singh Sindal (**131**), Vivek Purohit (**134**), Bharat Das Vaishnav (**142**) have not been produced through Video Conferencing from Jodhpur Jail. Let, fresh production warrants of accused Paras Bolia (121) Rahul Virendra Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for **17.11.2023** for producing the above-named accused persons before the Court.

(Approvers)

Statement of five accused persons namely **Parveen Kumar (161)**, **Nimesh Kumar Ramesh Soni (182)**, **Ritu Raj Singh (183)**, **Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, were recorded on 22.05.2023

(Awaiting further orders)

Accused namely Vivek Harivyasi (**115**), Surender Singh (**140**), Raj Kumar Modi (**176**) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **17.11.2023** for appearance.

Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **17.11.2023** for appearance.

(Awaiting further orders)

No further order of Hon'ble Rajasthan High Court against accused accused Meenakshi Modi (132) and Neha Ghemawat Modi (124), received. An application has been moved on behalf of accused Meenakshi Modi (132) and Neha Ghemawat Modi (124) stating therein that Hon'ble Supreme Court of India has been pleased to grant interim relief qua no coercive action be taken. He undertakes that both the accused will appear before the Court at the earliest. Now to come up on **17.11.2023** for further orders as well as for appearance of both the accused.

(Accused persons, whose matters are pending before Hon'ble High Court)

Accused No. 135 Sidharth Chauhan.

No intimation have been received on behalf of accused No.137 Shinder Pal Singh despite direction given to him by the Hon'ble High Court in his bail orders, to appear before this Court on or before 03.04.2023. Let notice to him be issued for **17.11.2023**. *A red ink note be given on notice/summons that it will be the last opportunity for his appearance as well as for furnishing bail bonds in compliance of orders of Hon'ble High Court.*

chandani`

(Jasbir Singh)
ADJ/Gurugram/29.08.2023
[UID No. HR0130]